



SPONSOR: Rep. Bush & Sen. Mantzavinos
Reps. Ross Levin, D. Short, Romer, Griffith, Yearick;
Sens. Buckson, Hocker, Hoffner, Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 139

AN ACT TO AMEND TITLE 18 OF THE DELAWARE CODE RELATING TO LINE-OF-DUTY HEARINGS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 6605, Title 18 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 6605. Administration of Fund; adjudication of claims.

4 (a) The Insurance Commissioner ~~shall~~must administer the Fund created under this chapter and ~~shall~~receive
5 claims against the Fund. The Commissioner ~~shall~~must determine the validity of all such claims and determine whether a
6 death resulting in any such claim was in the line of duty under terms set forth in § 6601 of this title. In making such
7 determinations, the Commissioner may seek the guidance of the Attorney General.

8 (b) The Commissioner ~~shall~~must hold a hearing on every contested claim, at which hearing the claimant may be
9 represented by counsel. The Commissioner may determine uncontested claims on the papers. ~~The Commissioner shall, at~~
10 ~~the hearing,~~ For all claims, the Commissioner must receive evidence, make findings, and render a decision. The
11 Commissioner ~~shall have~~has the power to subpoena witnesses and records and administer oaths and ~~shall~~must keep a
12 written or taped record of all testimony ~~given before him or her,~~given. The Commissioner ~~shall~~must state, in writing, ~~his~~
13 ~~or her~~the Commissioner's findings and the reasons for ~~his or her~~the decision.

14 ~~(b)-(c)~~ The Commissioner may issue regulations governing the submission, ~~processing~~processing, and
15 adjudication of claims, including regulations governing ~~hearings before him or her~~hearings.

SYNOPSIS

This Act eliminates a requirement for the Insurance Commissioner to hold a hearing for every Line-of-Duty Death claim, and instead mandates they occur only if the claim is contested. These hearings can be emotional burdens for families and covered persons, can delay the adjudication of the claim, and are costly for the Department of Insurance to conduct.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Drafting Manual.